

large. That would be required, in the absence of a redistricting act, in order to afford the representation to which the State is constitutionally entitled, and the general provisions of the Act of 1911 cannot be regarded as intended to have a different import.

This conclusion disposes of all the questions properly before the Court. Questions in relation to the application of the standards defined in section 3 of the Act of 1911 to a redistricting statute, if such a statute should hereafter be enacted, are wholly abstract. The judgment is reversed and the cause is remanded for further proceedings not inconsistent with this opinion.

Reversed.

MR. JUSTICE CARDOZO took no part in the consideration or decision of this case.

KOENIG ET AL. v. FLYNN, SECRETARY OF STATE,
ET AL.

CERTIORARI TO THE SUPREME COURT OF NEW YORK.

No. 731. Argued March 24, 1932.—Decided April 11, 1932.

Decided upon the authority of *Smiley v. Holm*, ante, p. 355.
258 N. Y. 292; 179 N. E. 705, affirmed.

CERTIORARI* to review a judgment affirming the refusal of a writ of mandamus.

Messrs. Abraham S. Gilbert and Benjamin L. Fairchild for petitioners.

The word "legislature" in § 4 of Art. I means the same representative body referred to in Art. II, § 1, of the Constitution. It must have the same meaning wherever used in the Constitution.

* See table of cases reported in this volume.